

JUDGE ABRAHAM

15 CV 00019

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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ANGEL MUNIZ,

Plaintiff,

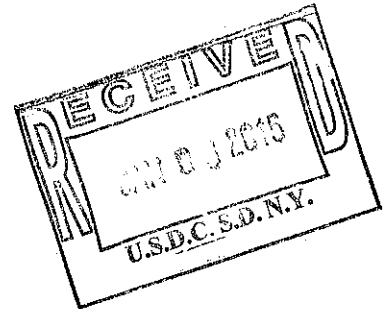
14 Civ.

vs.

**COMPLAINT AND
JURY DEMAND**

THE CITY OF NEW YORK, NYPD OFFICER
ALMEIDA (shield #14076), NYPD OFFICER
NATALIA TAVERAS (shield #19108),
NYPD SERGEANT ZURITA WASHINGTON.

Defendants.
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PRELIMINARY STATEMENT

This is an action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. § 1983, and the Fourth Amendment to the United States Constitution. Plaintiff was deprived of his constitutional rights when New York City Police Officers from the 46th Precinct in the Bronx intentionally, unlawfully, and unjustifiably arrested, detained and subjected him to excessive force causing him to sustain painful physical and emotional injuries.

JURISDICTION

1. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988, and the Fourth and Fourteenth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331, 1343 (3) and (4) and the aforementioned statutory and constitutional provisions.

8. At all times relevant herein, Defendants Almeida, Taveras, and Washington (“Individual Defendants”) were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

9. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The Defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

STATEMENT OF FACTS

10. At approximately 3:30 a.m. Plaintiff Angel Muniz was outside of a music club located at 1534 University Avenue in the Bronx when Defendants NYPD Officers Almeida and Taveras approached him. Without any warning or justification, Defendant Almeida struck Mr. Muniz multiple times with a night stick causing Mr. Muniz to fall to

the ground. Defendant Almeida then grabbed Mr. Muniz by his arm and with great force swung him around and threw him head first into a tree causing him to lose consciousness.

11. Mr. Muniz had not committed any criminal offense, nor did he give the police any justifiable reason to use such physical force against him.

12. Defendant Taveras was present and saw her partner, Almeida, assault Mr. Muniz but did nothing to intervene, stop or prevent the attack.

13. Defendant Sergeant Washington, as the supervising officer, knew that Mr. Muniz's arrest was unlawful but authorized it anyway.

14. The Individual Defendants refused to provide Mr. Muniz with much needed medical attention and treatment while he was in their custody.

15. Mr. Muniz was charged with Disorderly Conduct and Resisting Arrest and was not released from custody until approximately 11 a.m. on September 29, 2013.

16. After his release, Mr. Muniz went to Montefiore Medical Center where he was treated for the physical injuries he sustained during Defendant Almeida's attack that Defendants Taveras and Washington did nothing to prevent, intervene, or stop. His injuries include but are not limited to head trauma, loss of consciousness, dizziness, facial swelling and pain, facial contusions, abrasions and scars, thoracic and lumbar spine pain and tenderness, neck pain and tenderness, right shoulder pain, contusions, tenderness and limited range of motion, rib pain, pain and bruising to both wrists, cuts inside his mouth, and contusions all over his body.

17. Mr. Muniz attended several court appearances over the course of several months, losing time off from work, to defend against the false arrest and accusation.

Unable to take any more time off from work without losing his job, Mr. Muniz agreed to an adjournment in contemplation of dismissal.

18. The false arrest, false imprisonment, and excessive use of force against Mr. Muniz caused him to sustain injuries including but not limited to physical and emotional pain and suffering that are ongoing, anxiety, humiliation, loss of liberty, loss of reputation, lost wages and medical expenses.

CLAIMS FOR RELIEF

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights Against All Defendants

19. Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

20. Defendants, who were acting in concert and within the scope of their authority, arrested and caused plaintiff to be imprisoned without probable cause in violation of plaintiff's rights to be free of an unreasonable seizure under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

21. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement.

22. Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

SECOND CAUSE OF ACTION
42 U.S.C. § 1983/Fourth Amendment

23. Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

24. The use of excessive force by Defendant Almeida was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth Amendment to the United States Constitution.

25. The failure of Defendants Taveras and Washington, who had a duty to intervene, prevent, and stop Defendant Almeida from unjustifiably striking plaintiff with a nightstick, and grabbing and throwing him head first into a tree causing him to lose consciousness, was also objectively unreasonable in violation of his rights under the Fourth Amendment to the United States Constitution.

PRAYER FOR RELIEF

WHEREFORE, plaintiff requests that the Court grant the following relief jointly and severally against Defendants:

1. Compensatory damages in an amount to be determined at trial for the physical and psychological injuries and lost wages sustained by plaintiff as a result of the events alleged herein.
2. Punitive damages against the Individual Defendants in an amount to be determined at trial.
3. For pre-judgment interest as allowed by law.

4. An order awarding plaintiff reasonable attorneys' fees, together with the costs of this action.
5. Such other further relief as the Court may deem appropriate.

Dated: December 30, 2014
New York, New York

ROMANO & KUAN, PLLC

A handwritten signature in black ink, appearing to read 'Julia P. Kuan', is written over a horizontal line.

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